

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/18/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0001650

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

PLAINTIFF: SHAWNA SIMS

vs.

DEFENDANT: MARIN GENERAL
HOSPITAL

NATURE OF PROCEEDINGS: 1) MOTION – SEAL
2) MOTION – SEAL
3) MOTION - LEAVE

RULING

Plaintiff filed Motions to seal unredacted declarations on June 15, 2026, and June 17.

Plaintiff's unopposed motions to seal unredacted declarations are GRANTED. The unopposed failure to respond by Defendant is deemed consent. (Cal. Rules of Court, rule 8.54(c); Marin Local Rule Civ. 2.8G.1.)

Plaintiff's motion is therefore GRANTED in its entirety.

Plaintiff's motion to permit representative class members to proceed under pseudonyms is DROPPED as moot considering the stipulation and order signed September 15, 2026.

Parties must comply with Marin County Superior Court Local Rule 2.10(A)–(B). A party seeking oral argument must notify the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. on the court day before the hearing. Notice may be provided by telephone or in person; direct contact with counsel or the parties is not required. Absent timely notice to the Court and all parties, no oral argument will be permitted except by order. If no party properly requests oral argument, the tentative ruling becomes the order of the Court..

IT IS ORDERED Evidentiary hearings are in person in Department L. Routine appearances may be made by video using the link on the Court's website. When your case is called, turn on your camera and ensure the appearing party or lawyer is properly identified on screen.

FURTHER ORDERED Parties are responsible for maintaining a reliable connection and being available throughout the remote hearing. If a party's connection is inadequate, the Court may proceed in that party's absence. Participants determined to be driving during the hearing will be removed from the virtual courtroom. (Yes, this happens).

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/18/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0002210

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

PLAINTIFF: LESTER PETRACCA

vs.

DEFENDANT: ELIZABETH THIERIOT,
ET AL

NATURE OF PROCEEDINGS: MOTION – OTHER: DECLARE DEFENDANT A
VEXATIOUS LITIGANT

RULING

Plaintiff Lester Petracca (“Plaintiff”) filed a Motion seeking to 1) Declare Defendant Elisabeth Thieriot (“Defendant”) a Vexatious Litigant; 2) Issue a Prefiling Order Prohibiting New Litigation; and 3) Issue an Order Compelling Compliance with the Court’s November 14, 2025, Order. The motion is GRANTED in its entirety.

DEFECTS IN THE OPPOSITION/REQUEST FOR LEAVE TO RESPOND

The Opposition violates the 15-page limit for responding memoranda under California Rules of Court, rule 3.1113(d). The memorandum in opposition is subject to the same page limits as the moving memorandum, in that it may not exceed 15 pages. Rule 3.113(d). Defendant’s overlength opposition violates California Rules of Court, rule 3.1113(d); the Court considers only the first 15 pages and DISREGARDS the excess. If the memorandum exceeds the page limit and the party has not obtained permission from the court to file a longer one, the memorandum will be deemed to have been filed late at the time of filing and can be struck from the file. Rule 3.113(g). It would be unfair to permit one party to have more say on any issue than the other.

Defendant’s Request for Leave to Respond is DENIED.

LEGAL STANDARD

The legislature enacted the vexatious litigant statutes (Code of Civil Procedure §§ 391–391.8) to curb misuse of the court system by self-represented litigants who repeatedly file baseless lawsuits or attempt to relitigate issues that were previously determined against them, and who thereby waste the time and resources of the court system and other litigants. (*Shalant v Girardi* (2011) 51 Cal.4th 1164, 1169; *Colombo v Kinkle, Rodiger & Spriggs* (2019) 35 Cal.App.5th 407,